

primarily related to personal, family, or household purposes.

2. Discoverable Bank Records. Bank Records Requests No. 1 is hereby **QUASHED** and no responsive documents shall be produced by the bank custodian/PMK regarding this request. The bank custodian/PMK shall produce records responsive to **Bank Records Requests Nos. 2 and 3 ONLY** to the following extent: (a) any and all responsive records related to the 2021 Bank Transaction; and (b) any and all responsive records referencing the Borrowers or plaintiff Sandra Hernandez or any transaction involving them.

The Court has considered and denies the imposition of sanctions. The Court concludes that sanctions are not appropriate or justified. See Code Civ. Proc. § 2025.410(d) (“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to quash a deposition notice, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”); see also Code Civ. Proc. § 2025.420(h).

Disposition

The Court finds and order as follows:

1. The Motion to Quash is **DENIED IN PART** and **GRANTED IN PART** as set forth further above.
2. Any and all sanction requests are **DENIED**.
3. Moving party to prepare the order after hearing.

16. 9:01 AM CASE NUMBER: C24-02427

CASE NAME: REPUBLIC FLOOR, LLC VS. KARIN FAAPOULI

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER DEPOSITION TESTIMONY OF DEF SAMOAN CONGREGATIONAL CHURCH**

FILED BY: REPUBLIC FLOOR, LLC

TENTATIVE RULING:

Plaintiff Republic Floor, LLC (“Plaintiff”) filed a motion to compel further deposition testimony and production of documents by defendant Samoan Congregational Church of Jesus Christ in Daly City (“Church Defendant”) on March 2, 2026 (the “Motion to Compel Further Deposition”). The Motion to Compel Further Deposition was initially set for hearing on July 20, 2026. The motion was later reset for hearing on July 27, 2026.

Background

Plaintiff served its Amended Notice of Deposition of Person(s) Most Qualified (“PMQ”) on December 10, 2025. See Declaration of Sharon Mayer filed March 2, 2026 (“Mayer Decl.”), ¶19 and **Exhibit 3** thereto. This notice identified 41 requests for production (the “Requests”) and 64 topics of examination (“Topics”) as the original Notice. *Id.*

On December 19, 2025, the Church Defendant produced Ms. Ufau, the Church's current Treasurer, as its sole designated PMQ for a remote deposition. *Id.* at ¶11.

Analysis

Plaintiff contends that the Church Defendant failed to produce an adequately prepared person most qualified to competently testify about the Topics and (2) failed to produce documents responsive to the Requests.

The Declaration of Sharon Mayer and the supporting Separate Statement describe the lack of preparation for the deposition by the PMQ and the repeated and extensive failure to provide responsive testimony and documentation. See *id.* at ¶¶11-13; Separate Statement filed March 2, 2026.

Plaintiff engaged in meet and confer efforts and failed this motion when those efforts proved unsuccessful. Mayer Decl., ¶14 *et seq.*

A late, untimely opposition was filed by the Church Defendant on July 23, 2026, including an opposition declaration. Although late, in the exercise of its discretion, the Court has considered these papers. The short opposition does not engage meaningfully with the lengthy recitation of the deficiencies in the testimony and, essentially, concedes the need for further testimony by the PMQ. The opposition objects to the request for substantially sanctions sought.

The Court finds that the Church Defendant, by and through its designated PMQ, failed to adequately answer questions regarding the properly noticed examination Topics and failed to adequately produce responsive documents to the Requests. Code Civ. Proc. § 2025.480.

Sanctions

The supporting declaration describes substantial attorneys' fees incurred in the preparation of this motion ("over 12 hours, 19 at a rate of \$900 per hour" plus "over 40 hours, at a rate of \$655 per hour"). See Mayer Decl., ¶21. However, no supporting billing statements were proffered. While the Separate Statement was extensive and the review of the non-responsiveness required length discussion of the deposition record, the Court finds the claimed hours excessive. The trial court has broad authority to determine the amount of a reasonable fee. *Holguin v. Dish Network LLC* (2014) 229 Cal.App.4th 1310, 1329. The trial court is under no obligation to award the full extent of fees claimed by the prevailing party and may, for example, reduce a fee award where it finds certain claimed fees were inefficient or duplicative. *Id.* at 1330. In the exercise of its discretion, the Court awards \$10,000 in monetary sanctions. However, the Court reserved jurisdiction to award further monetary sanctions pending full compliance by the deponent.

The Court finds that the deponent's failure to adequately respond to deposition examination and to produce responsive documents constitutes failing to respond to an authorized method of discovery, pursuant to Code of Civil Procedure section 2023.010(d). The Court finds that such conduct constituted conduct that was a misuse of the discovery

process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions. In failing to adequately respond, the Court finds that the deponent did not act with substantial justification. Furthermore, the Court does not find any other circumstances that would make the imposition of monetary sanctions unjust.

Disposition

The Court finds and orders as follows:

1. The Motion to Compel Further Deposition is **GRANTED**.
2. The Church Defendant shall pay monetary sanctions to Plaintiff in the amount of **\$10,000.00** (the “Monetary Sanctions”). The Court finds that the Monetary Sanctions are reasonable expenses, including attorneys’ fees, incurred by the Plaintiff as a result of the foregoing conduct by the Church Defendant. In fixing said amount, the Court has considered all evidence in the record before the Court, including the supporting declarations of the moving party and the opposition. The Monetary Sanctions shall be paid by the Church Defendant within **thirty (30) calendar days** of notice of entry of this order.
3. The Court shall issue the order after hearing previously lodged by the moving party.

17. 9:01 AM CASE NUMBER: C25-02936

CASE NAME: SYLVIA HOLDEN VS. SFS 39 INC.

***HEARING ON MOTION FOR DISCOVERY AN ORDER QUASHING OR LIMITING SUBPOENA DUCES
TECUM**

FILED BY: HOLDEN, SYLVIA

TENTATIVE RULING:

The Parties were ordered to engage in further meet and confer regarding this discovery related motion pursuant to the Court’s Order issued April 6, 2026. The parties were to do so by “by direct talks via Zoom or telephone.” No declarations were filed regarding such further meet and confer efforts, including the opposition declaration which fails to address the further meet and confer ordered in April 2026. The parties are **ORDERED TO APPEAR**.